

Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

Counsel’s declaration indicates that 287.50 hours of work were expended by the class counsel in this case, at a blended rate of \$850 per hour. This results in an imputed multiplier of 1.15x. This multiplier is relatively standard for this type of case, in this Court’s experience.

Litigation costs of \$15,286.35 are reasonable and are approved. Settlement administration costs of \$10,500.00 are reasonable and are approved. The requested representative payment of \$7,500 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that she spent time speaking with my attorneys about the case, providing attorneys with documents and information concerning the case, and also describing policies, practices, and procedures of Defendant.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **granted**.
3. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
5. Plaintiffs’ counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing and is ordered to submit a compliance statement at least ten (10) court days before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
6. No appearance is required at the hearing on August 5, 2026.

16. 9:00 AM CASE NUMBER: MSC21-01737

CASE NAME: AUSTIN CUPIT VS IMPERIAL PARKING

FINAL APPROVAL HEARING SET BY THE COURTROOM

FILED BY:

TENTATIVE RULING:

Summary

Plaintiffs Austin Cupit and Andrew Caro (“Plaintiffs”) bring this Motion for Final Approval of Class Action and PAGA settlement with Defendants Imperial Parking (U.S.), LLC, AmeriPark, LLC, Lanier Parking Meter Services, LLC and REEF Global, LLC. (“Defendants”), together referred to as Parties. The Motion is granted provided Counsel complies with the proposed order herein. No appearance is

required at the hearing on August 5, 2026.

Background

The Settlement Agreement resolves a class action and Private Attorneys General Act ("PAGA") action brought by Plaintiffs Austin Cupit and Andrew Caro against Defendants Imperial Parking (U.S.), LLC, AmeriPark, LLC, Lanier Parking Meter Services, LLC, and REEF Global, LLC. The Settlement Class consists of all current and former hourly-paid or non-exempt employees who worked for any Defendant in California during the Class Periods of August 20, 2017 through February 13, 2024, encompassing approximately 3,196 Class Members. The Aggrieved Employee group for PAGA purposes includes non-exempt employees during the PAGA Period of November 11, 2021 through February 13, 2024, encompassing approximately 1,086 PAGA Members. Defendants have agreed to pay a Gross Settlement Sum of \$7,400,000.00 on a non-reversionary basis, to be paid in two installments: 66% (\$4,884,000.00) within 180 days of Final Approval, and 34% (\$2,516,000.00) within 360 days of Final Approval, with Defendants' share of payroll taxes paid separately.

The Gross Settlement Sum is allocated as follows: (1) \$2,590,000.00 (thirty-five percent of the Gross Settlement Sum) to Class Counsel as attorneys' fees; (2) \$26,131.10 to Class Counsel for reimbursement of litigation costs and expenses; (3) \$12,500.00 each to Plaintiffs Austin Cupit and Andrew Caro as Enhancement and General Release Payments; (4) \$27,500.00 to Phoenix Class Action Administration Solutions for administration costs; and (5) \$350,000.00 for PAGA penalties. Of the PAGA penalties, 75% (\$262,500.00) shall be paid to the California Labor and Workforce Development Agency, and 25% (\$87,500.00) shall be distributed to PAGA Members. The remaining Net Settlement Amount of approximately \$4,381,368.90 shall be distributed to Settlement Class Members (those who do not opt out).

Individual Settlement Payments shall be calculated on a *pro rata* basis according to Workweeks worked during the Class Period. The Settlement Administrator shall divide the Net Settlement Amount by the total Workweeks of all Settlement Class Members to determine a Final Workweek Value, then multiply each Settlement Class Member's individual Workweeks by that value. Individual PAGA Payments shall be calculated similarly based on Workweeks worked during the PAGA Period. Based on current estimates, the highest Individual Settlement Payment is approximately \$6,526.84 and the average is approximately \$1,371.32; the highest Individual PAGA Payment is approximately \$223.99 and the average is approximately \$80.57.

Individual Settlement Payments shall be allocated as 20% wages (reported on IRS Form W-2) and 80% interest and penalties (reported on IRS Form 1099), with appropriate tax withholdings deducted from the wage portion. Individual PAGA Payments shall be allocated as 100% penalties (reported on IRS Form 1099). Defendants shall pay the employer's share of payroll taxes on the wage portion in addition to the Gross Settlement Sum. All payments shall be issued within seven days following the funding of each installment, and checks shall remain valid for 180 days from mailing. Uncashed funds shall be distributed to the California Controller's Unclaimed Property Fund in the names of the individuals to whom the checks were originally issued.

The Court-approved Class Notice was mailed to all 3,196 Class Members on November 17, 2025, with a 60-day response deadline of January 16, 2026 (extended to January 31, 2026 for re-mailed notices). The Notice informed Class Members of their right to object, opt out, or dispute their Workweeks. As of the Response Deadline, the Settlement Administrator received zero Notices of Objection and one

Request for Exclusion. The Settlement is non-reversionary; no portion of the Gross Settlement Sum shall revert to Defendants. All Settlement Class Members and PAGA Members shall be bound by the Settlement terms regardless of whether they negotiate their checks. The Settlement constitutes a full and final resolution of all Released Class Claims and Released PAGA Claims, including claims arising under the California Labor Code and Business and Professions Code sections alleged in the operative pleadings.

Analysis

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

According to the Declaration of Shani O. Zakay of Zakay Law Group, APLC, the firm purports to have extensive experience in complex wage-and-hour class action litigation. The declaration establishes that Zakay Law Group attorneys have been awarded attorneys’ fees at rates ranging from \$550 to \$800 per hour for similar legal services performed in comparable matters. The declaration documents that Zakay Law Group expended 61.10 hours litigating this matter, performing tasks including case strategy and analysis, legal research, drafting and revising pleadings and settlement papers, and preparing for and attending mediation and settlement negotiations.

The Zakay Declaration supports the lodestar cross-check methodology used to validate the requested \$2,590,000.00 fee award (35% of the Gross Settlement Sum). Combined with the declarations of co-counsel, the lodestar calculation applies a blended hourly rate of \$850 to the 603.10 total hours

expended by all Class Counsel, yielding a base lodestar of \$495,005.00. The declaration justifies applying a risk multiplier of 5.24 to this base lodestar, resulting in an enhanced lodestar of \$2,593,826.20—closely approximating the requested fee award. This multiplier accounts for the contingent nature of the representation, the risk of non-recovery, the complexity of the wage-and-hour claims, the preclusion of other employment, and the substantial results achieved for the Class and the State of California.

Litigation costs of \$26,131.10 are reasonable and are approved. Settlement administration costs of \$27,500.00 are reasonable and are approved.

The award of \$12,500.00 each to Plaintiffs Austin Cupit and Andrew Caro as enhancement and General Release Payments for plaintiffs is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff Austin Cupit attests that he spent at least 10 hours on the case and understood the risks of and strategies involved in this litigation.

Considering all of the factors, particularly the size of the settlement, the full requested payment is approved.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **granted**.
3. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
5. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing and is ordered to submit a compliance statement at least ten (10) court days before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
6. No appearance is required at the hearing on August 5, 2026.

17. 9:00 AM CASE NUMBER: MSC21-01963
CASE NAME: KNIGHT VS HONDA
FILED BY DEFENDANT AMERICAN HONDA MOTOR CO., INC.
FILED BY:
TENTATIVE RULING:

Before the Court is a motion by defendant American Honda Motor Co., Inc. for summary judgment, or in the alternative, summary adjudication. For the reasons set forth, the motion in its entirety is **denied**.